CAECILIA NYAMUTSWA (nee Madawu)
versus
COSMAS NYAMUTSWA

HIGH COURT OF ZIMBABWE
**PHILLIPS J**
HARARE; 2,3,4, 5 June 2025 & 15 January 2026

***Summons Commencing Action***

*P Chakasikwa,* for the plaintiff
*T Rupende*, for the defendant

PHILLIPS J:

**Introduction**

The plaintiff and defendant were married to each other in terms of the Marriage Act [*Chapter 5:11*] at Sacred Heart Cathedral, Harare, on 07 October 2000 and the marriage still subsists. The plaintiff has approached this court seeking an order for a decree of divorce and the sharing of matrimonial property. The defendant has lodged a counterclaim in which he claims for divorce, sharing of property and spousal maintenance.

**Factual Background**

The parties were married to each other in terms of the Marriages Act [*Chapter 5:11*], which is now the Marriages Act [*Chapter 5:17*], on 7 October 2000. The union was blessed with 3 children who are now majors, which is why the plaintiff withdrew the claim for monthly maintenance. The defendant refused to contribute anything towards university fees on the grounds that he is unemployed. The parties acquired two immovable properties during the subsistence of their marriage, being Stand No. 143 Colne Valley Township of Lot 6 of Lot 14 of Lot A of Colne Valley of Reitfontein, measuring 4451 square metres – the "Colne Valley property" and Stand No. 163 Vainona Township of Vainona, measuring 4441 square metres – the "Vainona property", which are registered in both parties' names. The list of movable properties is endless, so this court will not list all of them. The defendant has made a counterclaim for spousal maintenance on the ground that he is no longer gainfully employed.

It is not disputed that the marriage has irretrievably broken down. The plaintiff has listed her grounds for the breakdown as the defendant's abuse towards her, defendant's anger

issues, defendant's wasteful behaviour with family resources and his failure to financially support the family meaningfully. Due to these reasons, the parties can no longer live together as husband and wife.

**Relief Sought**

1. A decree of divorce.
2. An order awarding plaintiff custody of the minor children namely Edwin Tapiwa Nyamutswa and Cosmas Junior Munashe Nyamutswa with the defendant having access every other weekend and half school holidays.
3. An order directing defendant to pay maintenance for the minor children in the sum of US$ 100.00 per month per child until each child attain the age of majority or become self-supportive whichever comes first.
4. An order awarding plaintiff 90% share in the property known as stand 143 Colne Valley township of Lot 6 of Lot A of Colne Valley of Reitfontein and an 85% share in the property known as Stand 163 Vainona Township of Vainona being sold at the best advantage and the defendant being paid his shares in both immovable properties from the proceeds of the sale of the Vainona property after taking into account the outstanding mortgage registered over Stand 143 Colne Valley Township of Lot 6 of Lot A of Colne Valley of Reitfontein.
5. An order awarding the plaintiff as her sole and exclusive property the following:

   2x capri double freezers
   Dining room suite
   Beige leather lounge suite
   Hisense double door smart refrigerator
   Hisense smart tv and decoder
   Samsung tv and decoder
   Microwave
   Water booster pump
   All kitchen utensils and cutlery
   Dressing table
   All chest of drawers
   All garden equipment
   All other household goods
   All the children's beds

6. An order awarding the defendant as his sole and exclusive property the following assets:

   Brown lounge suite

   Television set in the bedroom

   Decoder

   Bed

   2 deep freezers i.e. capri freezer and freezer labelled I am happier flying which is in the laundry room.

   2 boats and a trailer on Colne valley premises

   All finishing equipment

   Gold refining boiler equipment

   Welding equipment

   Fishing equipment

   Cessna aircraft parked at Charles Prince Airport

   All the camping equipment

   Blue gas bottle

   Black electric juicer in the kitchen

   One duvet, 2 pillows with fitted sheet and duvet cover

   Nissan March Registration No. AED 1072

   Printed copies of two books namely, "who built great Zimbabwe and why" and Our Totems and Our Sexuality

   Any royalties and income from the books

   2 pots, 1 pan, 2 plates, 2 table spoon, 2 teaspoons and a wooden spoon

   All the blue water containers

   The big generator

7. Costs of suit.

**Issues for determination**

1. What will constitute a just fair and equitable distribution of the immovable property.
2. What will contribute just, fair and equitable distribution of the movable property.
3. Whether or not parties should contribute equally towards the educational expenses of their children.

4. Whether the defendant is entitled to spousal maintenance in the form of Medical Aid.

**The Evidence**

Both parties gave evidence. The Plaintiff testified that their marriage was generally unhappy and that the defendant was also abusive towards her. She informed the court that she was a lawyer by profession and that she was once a partner at a law firm before she worked for banking and other institutions. She gave evidence that she purchased both the Colne Valley and Vainona properties through her employment with those institutions. In fact she gave the court plenty of evidence of the mortgages and how she single handedly paid for both mortgages on the disputed immovable properties. She also gave the court evidence of how she paid for her children's education without any assistance from the defendant. She is still paying for and supporting her children although her testimony was that they also have scholarships.

The plaintiff was very clear that the defendant was not supportive, he sat back expecting her to do everything for the household and for the children and told the court that he was wasteful of resources. Although the title on both properties is shared with the defendant, the plaintiff prays that she be awarded more than the 50% half share that is presumed to be hers. Her evidence, as already mentioned, shows that she made all the payments for those homes.

The defendant's evidence is that he is a pilot by profession but due to ill heath he had to go into training pilots as he could no longer fly aeroplanes. He told the court that when his wife was in private legal practice, he is the one who suggested that it was more profitable for her to leave practice and work for a banking institution where she would get better benefits which include loans and mortgages. The defendant maintained that this one contribution made such a big difference in their life that it essentially changed their life. His admits that the plaintiff paid for the houses but told the court that when he was gainfully employed he did contribute to the family's lifestyle which was described as lavish as it included private charter planes and fishing expeditions for vacation. He further stated that when hard times fell upon him, his contribution was indirect and likened himself to a "house-husband", catering to the household and school runs. The defendant admitted that the vehicles he drove were generally vehicles that the plaintiff purchased or obtained as an employment benefit, he even admitted that when he did the school runs, the petrol came from the plaintiff. He complained to the court that the motor vehicle that he used previously was removed the time that the divorce summons were issued but ought to be considered matrimonial property. He disputed

the plaintiff's position that the vehicle is no longer there for distribution. Another major issue for the defendant is maintenance, he told the court that a married couple owe each other a duty of care and that the plaintiff should not have removed him from her medical aid plan, especially since she was aware that he was of ill health and could not afford to pay for his own medical aid. The defendant's plea to the court was for the court to consider the lifestyle that he is accustomed to so that his life style may continue as though they were still married.

**The Law**

In making an appropriate order of distribution of the assets of the parties' the Court has a wide discretion conferred under **Section 7(1)** of the **Matrimonial Causes Act [*Chapter 5:13*]** and such discretion must be exercised taking into account the particular facts, the circumstances of the case, the conduct of the parties and generally what would constitute a reasonable, practical and just division.

*Section 7(1)* of the Act clearly states that;

> "subject to this section in granting a decree of divorce or judicial separation or nullity of marriage or at any time thereafter, an appropriate court may make an order with regards to
>
> a) The division and apportionment or distribution of the assets of the spouses including an order that any asset be transferred from one spouse to another"

Section 7 (4) of the Matrimonial Causes Act enjoins the court to "endeavour as far as is reasonable and practicable and having regard to their conduct is just to do so to place the spouses … in the position they would have been had a normal marriage relationship continued."

In *Gonye* v *Gonye 2009(1) ZLR 232(SC),* the court had occasion to deal with the above provision. Honourable MALABA JA (as he then was) stated as follows;

> "It is important to note that a court has an extremely wide discretion to exercise regarding the granting of an order for the division, apportionment or distribution of the assets of the spouses in divorce proceedings. Section 7(1) of the Act provides that the court may make an Order with regard to the division, apportionment or distribution of "the assets of the spouses including an Order that any asset be transferred from one spouse to the other". The rights claimed by the spouses under s 7(1) of the Act are dependent upon the exercise by the court of the broad discretion.
>
> The terms used are the "assets of the spouses" and not "matrimonial property". It is important to bear in mind the concept used because the adoption of the concept "matrimonial property" often leads to the erroneous view that assets acquired by one spouse before marriage or when the parties are on separation should be excluded from the division, apportionment or distribution exercise. The concept "the assets of the spouses" is clearly intended to have assets owned by the spouses individually (his or hers) or jointly (theirs) at the time of the dissolution of the marriage by the court considered when an order is made with regard to the division, apportionment or distribution of such assets."

In the case of *Ncube* v *Ncube* 1993 (1) ZLR 395 it was highlighted that;

> "Indications have been given that the blame where the conduct of the parties might affect a distribution of property where that behaviour has enabled the spouse to acquire morally indefensible financial advantage from the closed marriage or would do so if proper steps were not taken."

In *Marimba* v *Marimba* 1999 (1) ZLR 87 GILLIPSE J, as he then was, had the following to say;

> "Where the excessive and culpable conduct of one of the parties exceeds mere mutual recrimination from the unhappy marriage it may be a duty of the court to consider the extent to which that should influence the division of assets."

In the court's overall effort to achieve a fair and just distribution of assets or granting a maintenance order, it may consider the conduct of the parties that might have a bearing on the final order to the extent to which that would be just. Where the conduct of one of the parties is so obvious and gross that to order one party to support another whose conduct falls into this category is repugnant to anyone's sense of justice.

In the case of *Kwedza* v *Kwedza* HH 34-12, the court stated that;

> "MAKARAU JP (as she then was) remarked in *Dzova* v *Dzova* 2008 (1) ZLR 294(H)… the Act introduces a duty on the court divorcing the parties to maintain as far as is reasonable and practicable, the lifestyle that the spouses enjoyed during the subsistence of the marriage but "upholding one obviously frustrates the other". The reality is that once the divorce is granted, the position of the parties in the majority of the cases changes considerably and irretrievably….it may be possible for a court to achieve a more or less similar lifestyle of living for both spouses after divorce. In many cases however this is not achievable… what the law requires and the court endeavours to do in such a situation is to try and do justice, taking into account the personal and family circumstances of the spouses and the resources available at the time of the divorce. Generally speaking, restoring the status quo ante in the majority of the cases may not be feasible."

In *Lafontant* v *Kennedy* 2000(2) ZLR 280(S), the court stated thus;

> "Where two persons own immovable property in undivided shares, there exist a rebuttable assumption that they own it in equal shares. The presumption will be strengthened when the parties are married to each other at the time ownership was acquired. The court cannot move away from that position on mere grounds of equity. It cannot give away A's property to B on the mere grounds that it will be fair and reasonable or just and equitable to do so. There must be more solid foundation in law to deviate from this assumption."

In *Kanoyangwa* v *Kanoyangwa* 2011(1) ZLR 90(H) the court held that;

> "…where immovable property is registered in joint names of the spouse. This factor must be recognized as a starting point because a property registered in joint names the presumption is that it is held in equal shares unless proven otherwise. In order to take a spouses', share and transfer it to another, there ought to be some solid ground for doing so."

In *Usayi* v *Usayi* SC 22-24, it was held as follows:

> "The sooner married couples realize that marriage is not a business arrangement where they come together in matrimony for convenience to acquire property separately while keeping

> receipts and other documents for future use in court, the better for everyone. The courts recognize that parties come together in Holy Matrimony for their common good and the good of their children. It is both the direct and indirect input of the spouses which leads to property acquisition…… There has to be an obvious and compelling reason for the court`s departure from the overarching principle of equality in the sharing of property."

In the case *Radhu* v *Radhu* ZWMSVHC 59/22 it was stated that;

> "All that is being said however is that the distribution matrix cannot in all fairness be blind to the relatively more significant role played by the plaintiff's cattle broking and other business exploits which formed the bedrock upon which the party's business and domestic portfolio grew from strength to strength"

As established in *Takafuma* v *Takafuma* 1994 (2) ZLR 103 (S) 107 C, the approach is not one of strict equality or mathematical division, but one that considers the direct and indirect contributions of each party, as well as the welfare of any minor children. MCNALLY JA made the following pronouncement;

> "The approach which I have outlined is consistent with an earlier decision of this court. In *Ncube* v *Ncube* (1993 (1) ZLR 39). KORSAH JA dealt with a similar situation at (pp 45-48) of the judgment. He adopted the approach of starting from a position of 50-50 ownership and only moving away from that position if the justice and equity of the case required it."

It was clearly set out by CHITAKUNYE J (as he was then) in *Kwedza* v *Kwedza* HH 34-12 where he remarked;

> "It is only fair that whatever apportionment or distribution is done, it does not burden the defendant so much that he is left without accommodation."

In *Mhora* v *Mhora* SC 89-20, the Supreme Court also upheld the award by the High Court to a wife of a 50% share of an immovable property which was registered in her husband's name. This was pursuant to a divorce. The husband had submitted that he acquired the matrimonial property without any direct contribution from her, whilst the wife had argued that their roles were complementary. The court had this to say on indirect contributions:

> "Indirect contributions encompass much more than the performance of domestic duties. It encompasses all aspects of a spouse's role in the life of the other spouse and their children in the day to day running of a family."

In *Kanyekanye* v *Kanyekanye* HH238/22 it was held that;

> "Further, the major child is now an adult, and for that reason, the applicant no longer had locus standi to sue for maintenance on her behalf. Finally, it was argued that the balance of convenience favours the dismissal of the present application..."

It is trite in our law that spouses in a marriage have equal obligations as they owe each other a duty of care during and at the dissolution of the marriage. In deserving circumstances, an award follows for the upkeep of the disadvantaged spouse. Post-divorce

spousal maintenance is not granted on mere asking. The court in the case of *Duncan* v *Duncan* HH 232-17 held as follows:

> "One has to satisfy the court that there is a need for the maintenance and that the other spouse is capable of paying, as they have the means, and that the spouse claiming cannot sustain themselves. These factors ought to be considered cumulatively. Maintenance is not a way of fixing or getting at the other party in a collapsed marital relationship. It is meant for sustaining the other spouse who is incapable of sustaining themself. The central aspect is what is just and equitable in the circumstances. Again, calculated with a view to retain the parties in a position they would have been in had the marriage continued or subsisted."

In *Chiomba* v *Chiomba* 1992 (2) ZLR 197 MANYARARA JA stated that:

> "It remains to be said with the emergency of the working wife and woman's liberation the attitude of the courts towards award of maintenance has been changing the world over permanent maintenance is reserved for elderly wife who has been married to the husband for a long time and is too old to earn a living."

The court has a wide discretion which ought to be exercised judiciously by looking into the wide spectrum so far as proprietary issues are concerned, and to ensure, as far as practically possible, that a fair and just disposition is reached. It is not proper to enrich or impoverish either of the spouses. In terms of the Matrimonial Causes Act, the assets to be considered in the distribution are assets owned or held by the spouses individually or jointly as at the time of the dissolution of the marriage. In *Sithole* v *Sithole* HH 674-14 at p 9 of the cyclostyled judgment it was reiterated that:

> "It is trite law that a wife cannot bar her husband from selling assets registered in his name more so when no divorce action requiring the distribution of those assets is instituted. However, court can intervene where a sale is not genuine but is meant to defeat the wife's cause."

Equally in *Muswere* v *Makanza* 2004 (2) ZLR 262, MAKARAU J (as she then was) had occasion to deal with a situation where a husband had disposed of the house that the wife believed she had a share in. The wife had argued that the husband should not have disposed it without her consent. The learned judge at p 266 D-E stated that:

> "The position in our law is therefore that a wife cannot even stop her husband from selling the matrimonial home or any other immovable property registered in his sole name but forming the joint matrimonial estate. There must be some evidence that, in disposing the property, the husband is disposing it at under value and to a scoundrel. Mere knowledge that the seller of the property is a married man who does not have the consent of the wife to dispose of the property is not enough."

The court has held in relation to immovable property; due regard is given to the need to come up with a fair distribution as correctly spelt out by CHITAKUNYE J in *Kwedza* v *Kwedza* HH 34-12 where he remarked:

> "It is only fair that whatever apportionment or distribution is done, it does not burden the defendant so much that he is left without accommodation."

In the case of *Mhangami* v *Mhangami* HH 523-21, the court had the following to say:

> "Furthermore, the children in this instance are all majors and can chart their own paths in life. A divorcing spouse cannot be denied her right to assets which she is entitled to and which she needs to start a new life, simply because one spouse requires the other spouse's needs to be subservient to his own legacy considerations. Divorce, of necessity, brings about fundamental changes in the parties' lives. Needs are prioritized by the courts because each party has to craft new beginnings. There is absolutely no justification here for refusing to accord each party their 50% share in the Marlborough property. Theirs was a long marriage. It will not be easy to start afresh, but that is the reality that they will have to make do with their share of the matrimonial home. As the plaintiff correctly summarized, divorce comes with the consequences of property sharing."

**Application of the Law To the Facts**

The factors listed in section 7 of the Matrimonial Causes Act [*Chapter 5:13*] must be considered collectively, not in isolation. The court must assess what is reasonable, practical and just in ordering a division of property by having regard to all the circumstances of the case. No exhaustive catalogue of relevant factors can be provided because relevant considerations depend on the particular facts before the court.

The plaintiff prays that she be awarded 90% of the Colne Valley property, with the defendant getting 10% of the said property. The plaintiff prays that she be awarded 85% of the Vainona property, with the defendant being awarded the remaining 15% of the Vainona property. Both properties are jointly registered, creating a *prima facie* undivided equal share for each party. The court is empowered to transfer part of one party's registered share only if solid grounds exist to justify a departure from equality. The court defined what constitutes a solid ground in the case of *Field* v *Field* HH 68-21 which quoted with approval the case of *Takafuma* v *Takafuma* 1994(2) ZLR 103(S) where it was held that

> "the contributions made by the parties towards the purchase of the house and improvements upon the house and the income received by the parties from the house"

was held to be one such solid ground or foundation justifying an award of one party's share of property to another. The plaintiff produced documentary evidence of greater direct contributions to acquisition and mortgage servicing; the defendant made mainly indirect

contributions and provided for the family lifestyle. In *Fields* v *Fields HH 68-21* it was stated that,

> "the defendant has proved on a balance of probabilities that she was a major contributor in the acquisition of the properties before and during the marriage. She had a more profitable business enterprise than the plaintiff. She cannot be expected to have a 50-50 share of the property with the plaintiff. Her contribution was far greater than that of the defendant. The defendant wants to walk out of the marriage as a victorious beneficiary when in actual fact his contribution was only the minimal. His only winning ticket is the joint registration of the properties".

The defendant testified that he used his money to buy motor vehicles, boats and guns for the benefit of the family. The defendant is the sole owner of the guns which are expensive and still in his position. The defendant built a Great Zimbabwe monument statue at the Vainona property and also bought guns for hunting and boats for fishing. The plaintiff submitted that the defendant was wasting family resources but didn't provide any evidence to show that she at any stage tried to stop the wastage of resources, nor did she complain of the lavish lifestyle she was afforded by the defendant when he was still able to afford the same. It seems as if this only became an issue after the defendant was no longer gainfully employed.

It is therefore common cause that when the plaintiff was servicing the bank mortgages, buying furniture and paying school fees, the defendant was also contributing towards the lifestyle of the family. However, there are solid grounds to depart from a strict 50:50 division because the plaintiff's direct financial contributions outweigh the defendant's direct contributions. The defendant's indirect contributions and provision for family needs reduce the extent to which his registered shares should be stripped away. Equity, fairness and justice require a significant transfer in favour of the plaintiff of at least one of the immovable properties.

The defendant in his pleadings claims that he should be awarded the Vainona property with the plaintiff being awarded the Colne Valley property, as each party's sole and exclusive property. During the trial, the defendant abandoned this claim during cross examination, and opted to be awarded the Colne Valley property, with the plaintiff being awarded the Vainona property, he also opted to paying the plaintiff the difference in the value between the two properties. The defendant further averred that they owned a plot in Shamva, which shall be awarded to the plaintiff.

The plaintiff has established a solid ground for this court to exercise its discretion by taking from the defendant's share of the Colne Valley property and awarding the same to her. The defendant admitted that the plaintiff contributed more than he did, especially when he

was unemployed for 8 years during the subsistence of their marriage. The plaintiff herein claims that she is entitled to a larger share in the properties because she directly contributed to the purchase of the properties without the financial assistance of the defendant. The defendant has been adamant that in as much as he did not directly contribute to the purchase of the properties, he indeed indirectly contributed. When the Vainona property was acquired, the defendant was still gainfully employed, and he contributed to the expenses of the home whilst the plaintiff's salary was meant to cater for the mortgage loan. It was the defendant's evidence that he supported the family financially, freeing up the plaintiff's income to accommodate the mortgage loan, hence also contributing to the acquisition of the Vainona property. Despite failing to give actual evidence of his contributions, he therefore would be entitled to retain some of his share in the Vainona property.

The defendant gave evidence to the effect that the plaintiff purchased a Toyota Prado through a vehicle scheme from her employer. After the parties got the Prado, the plaintiff was allocated another motor vehicle, and the defendant started using the Toyota Prado. However, before the plaintiff served the defendant with a Divorce Summons, she sold the Toyota Prado to ensure that the motor vehicle would not form part of the matrimonial assets for distribution.

The defendant maintained his claim for movables as set out in his pleadings, including the claim for the Toyota Prado motor vehicle, which was sold before the commencement of divorce proceedings. However, it is a trite norm that this Court cannot distribute at the dissolution of the marriage what is no longer in existence. The Toyota Prado is no longer there to distribute.

The defendant also testified that he is retired, currently unemployed, and has been married to the plaintiff for almost a quarter of a century. Yet, he was removed from the plaintiff's medical aid, knowing fully well that he had various ailments that needed constant medical attention. The defendant even quotes the Zimbabwean Constitution citing its protection of equality of obligations and the duty of care that spouses owe each other in marriage and upon dissolution of marriage. The defendant is hopeful in his claim for maintenance from the plaintiff when it is clear that he has not been contributing anything towards the upkeep, tuition and accommodation of children of the marriage who are majors in status but not yet self-supportive. He has held onto assests he loves, assests he could have monetised or sold, he has written and sold books, received royalties, given lectures but still failed to contribute where he could have.

Among the various considerations by the Court, in determining who gets what, the courts have, in most cases, considered the issue of contribution. The law allows a party to prove that they made certain contributions, directly and/or indirectly, towards the acquisition and or maintenance of the property. Proof of direct contribution may be in the form of receipts towards the purchase price or building material. The court will also consider proof of indirect contribution in the form of moral support, love and affection to justify the award of a portion of the property to a party, regardless of the fact that they did not contribute financially/ directly to its acquisition or maintenance.

Most importantly, however, the whole thrust of section 7 of the **Matrimonial Causes Act** is to place the parties as far as is reasonable and practical in the position they would have been had the marriage relationship continued between them. The defendant is staying at the Vainona property, where he is only using 2 rooms and leasing the other rooms. The defendant conceded that he does not have furniture to fill in the Vainona property, which is why he is using only two rooms. The parties have been separated over two and a half years the defendant has been managed living in the Vainona property in such a state, and in those dilapidated conditions. If the marriage continued, he would still be in those conditions.

This court finds it desirable that the defendant retain all his treasured guns, all the boats, books he authored and aviation books as these are his tools of trade. The defendant is to retain the Great Zimbabwe monument statue (conical tower) as his sole art and the plane, as he testified during trial, that he would want to put it in a museum. All the proceeds from these movables shall solely belong to the defendant.

It is common cause that the children born during the subsistence of the marriage are now adults. Once a person reaches the age of 18 years, he or she can sue or be sued in his or her personal capacity. The plaintiff withdrew her claim for monthly contributions towards maintenance but insists that the defendant contribute towards the educational expenses of the 3 children. The children are now majors, so they can and should make their own claims. They are also not parties to this litigation. The plaintiff did not show this court any authority from the children to make such claims on their behalf.

**Disposition**

There must be a balance between the spouses, such that one spouse is not enriched to the detriment of the other spouse. In the exercise of this discretion, the court looks at a wide spectrum of factors such as the length of the marriage, the contributions, the earning capacity of the parties, the ages of the parties, the physical and mental condition of either of the

spouses, the future needs of the spouse and the current status of the parties. The list is not exhaustive but what is central is the need to come up with a fair, reasonable and just order in the circumstances.

Having found that plaintiff did not prove that she had authority to represent the parties' three children who are all majors to claim on their behalf and the defendant having failed to prove that the plaintiff has an onus to pay medical aid for him post separation of the parties, and that the Shamva Plot, the Honda Fit and the Toyota Prado form part of the assets for distribution at the dissolution of the union, I make the following order:-

1. A decree of divorce be and is hereby granted.
2. There shall be no order as to access, custody, maintenance and spousal maintenance.
3. The plaintiff be and is hereby awarded 2x capri double freezers, dining room suite, beige leather lounge suite, Hisense double door smart refrigerator, Hisense smart tv and decoder, Samsung tv and decoder, microwave, water booster pump, all kitchen utensils and cutlery, dressing table, all chest of drawers, all garden equipment and all the children's beds as her sole property.
4. The defendant be and is hereby awarded brown lounge suite, television set in the bedroom, decoder, bed, 2 deep freezers i.e. capri freezer and freezer labelled I am happier flying which is in the laundry room, 2 boats and a trailer on the Colne Valley premises, all finishing equipment, gold refining boiler equipment, welding equipment, fishing equipment, Cessna aircraft parked at Charles Prince Airport, all the camping equipment, Blue gas bottle, Black electric juicer in the kitchen, one duvet, 2 pillows with fitted sheet and duvet cover, Printed copies of two books namely, "who built great Zimbabwe and why" and Our Totems and Our Sexuality, any royalties and income from the books, 2 pots, 1 pan, 2 plates, 2 table spoon, 2 teaspoons and a wooden spoon, all the blue water containers and the big generator as his sole property.
5. The plaintiff be and is hereby solely awarded Stand No. 143 Colne Valley Township of Lot 6 of Lot 14 of Lot A of Colne Valley of Rietfontein, measuring 4451 square meters which is currently registered in both parties' names.
6. The defendant be and is hereby awarded 40 % and the plaintiff 60% of Stand No. 163 Vainona Township of Vainona measuring 4441 square metres currently held in both parties' names. The defendant is given the first option to buy out the plaintiff

within 6 months; failure of which the plaintiff will be given an option to buy out the defendant. In the event of none compliance by both parties, the house shall be sold and the net proceeds will be distributed accordingly.

7. The plaintiff be and is hereby awarded a 12 Acre Plot at Matanda in Shamva.
8. The plaintiff and defendant, respectively, be and are hereby ordered to attend the signing of all the necessary documents to effect transfer of the aforementioned properties, within ten days being called upon to do so, failing which the Sheriff of the High Court of Zimbabwe be and is hereby authorized to sign such documents on either party's behalf at their expense.

9. Each party to bear its own costs.

**PHILLIPS J**: ……..

*Kantor & Immerman*, plaintiff's legal practitioners
*B Ngwenya Legal Practice*, defendant's legal practitioners